

25CHCV04216 25CHCV04216

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 25CHCV04216 Hearing Date: July 21, 2026 Dept: F47

Dept. F47

Date: 7/21/26

Case #25CHCV04216

MOTION TO

VACATE & SET ASIDE ENTRY OF DEFAULT

Motion filed on 1/28/26.

MOVING PARTY: Defendant MU Holding Enterprises Inc.

RESPONDING PARTY: Plaintiff Michael Collins

NOTICE: ok

RELIEF REQUESTED: An order vacating and setting aside the 1/27/26 entry of default.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 11/26/25, Plaintiff Michael Collins (Plaintiff) filed this action against Defendant MU Holding Enterprises Inc. (Defendant) alleging various causes of action relating to Plaintiff's purported tenancy at residential real property located at 15023 Devonshire St., Mission Hills, CA 91345. On 12/9/25, Plaintiff filed a First Amended

Complaint against Defendant.

On 1/20/26, default was entered against Defendant. (See 1/20/26 Request for Entry of Default and 1/27/26 Minute Order). On

1/21/26, Defendant filed and served a demurrer and motion to strike as to Plaintiff's First Amended Complaint. On

1/28/26, Defendant filed and served the instant Motion to Set Aside Entry of Default which was originally set for hearing on 6/2/26. Plaintiff opposed the motion.

On 6/2/26, pursuant to Defendant's counsel's motion, the

Court continued the hearing on the Motion to Set Aside Entry of Default to 7/21/26 to allow for the filing of further declaration by Defendant. (See 6/2/26 Minute Order; 6/2/26 Nunc Pro Tunc Order). On 6/23/26, Defendant

filed (served 6/19/26) a supplemental memorandum of points and authorities in support of the motion along with the declaration of its president, Moises Urbina. On 7/6/26, Plaintiff filed a second supplemental opposition to the motion.

No proof of service for the second supplemental opposition has been filed.

ANALYSIS

Defendant's Request for Judicial Notice is denied as the Court finds the information was not necessary for the ruling on this motion.

Upon any terms as may be just, the court may relieve a party or the party's legal representative from a judgment, dismissal, order or other proceeding taken against the party through the party's mistake, inadvertence, surprise or excusable neglect.

CCP 473(b). Additionally, the court may upon motion of the injured party, or on its own motion, set aside a void judgment or order. CCP 473(d).

The Court finds that the declaration of Defendant's president, Moises Urbina, submitted with the supplemental memorandum of points and authorities filed in support of the motion sufficiently establishes that the default entered against Defendant on 1/20/26 was the result of his mistake, inadvertence, surprise and/or excusable neglect. (See Urbina Decl.).

Moreover, there is no evidence that Plaintiff served

Defendant with a Statement of Damages before the default was entered. In a personal injury action, the plaintiff must serve a statement of damages on the defendant before default may be taken. See CCP 425.11(b), (c). Here, Plaintiff alleges that as a result of Defendant's conduct, he suffered, among other things, emotional distress, health impacts and discomfort. (See FAC ¶¶21, 33, 41, 53). Additionally, Plaintiff's prayer for relief includes a request for emotional distress damages. (FAC, p.14:23). As such, this case is, at least in part, a personal injury action. Plaintiff's failure to serve a statement of damages on Defendant before the default was entered renders the default void. See CCP 425.11(c); Plotitsa (1983) 140 CA3d 755, 760; Schwab (1991) 53 C3d 428, 432-433.

CONCLUSION

The motion is granted.

The default entered against Defendant on 1/20/26 is set aside. Within 15 days, Defendant may file and serve a response to Plaintiff's First Amended Complaint. Defendant may not rely on/revive the demurrer and motion to strike previously filed on 1/21/26 as they were filed on behalf of Defendant by "Walter Jackson & Associates" with a California State Bar number associated with a Meredith Ellen Niewhous who has an inactive status.